

In this debt collection case, both parties agreed to the terms of stipulation memorializing a settlement agreement outside of court and requested that the court retain jurisdiction to enforce the terms of the agreement if the Defendant breached the terms of the settlement agreement. Defendant has defaulted on the payment arrangement under the stipulation agreement. The business records of Plaintiff's Counsel indicate that the last payment was received on February 27, 2025. Plaintiff now seeks to have the dismissal set aside and judgment entered, as agreed by the parties.

Analyses

Code of Civil Procedure § 664.6 provides that if parties to a pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment under the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. "In a writing signed by the parties outside the presence of the court..." means that the litigants agreed to the settlement in the same manner and the settlement agreement may be enforced against all parties. *Elyaoudayan v. Hoffinan*, (2003) 104 Cal.App. 1421, 1428.

Additionally, California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Defendant's consent to the granting this motion. The Court finds that Defendant consents to the entry of judgment against her consistent with the terms of the settlement agreement.

Ruling

Plaintiff's Motion is **granted**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS COMPLAINT
FILED BY: FACCHINI, PRIMO
TENTATIVE RULING:

Before the Court is Cross-Defendant Primo Facchini ("Cross-Defendant" or "Facchini")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s

Cross-Complaint for (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

Cross-Defendant demurs to the Cross-Complaint on several grounds, including uncertainty, failure to allege facts sufficient to state a cause of action, and that there is another action pending between the same parties on the same cause of action. (Code Civ. Proc., § 430.10(c), (e), and (f).)

On its own motion, the court consolidates this action with C22-02585 for all purposes. (See Code Civ. Proc. § 1048, subd. (a); *Nissan Motor Corp. v. Superior Court* (1992) 6 Cal.App.4th 150, 154 [court ordered consolidation of three actions on its own motion].) From the Court's perspective, separate cases are inefficient and could lead to conflicting orders. (*Schneider v. Vennard* (1986) 183 Cal.App.3d 1340, 1350 ["duplicative litigation of the same issue does not serve the public interest"].) As the instant case has the earlier file date, it will serve as the lead case.

For the following reasons, the Demurrer is **overruled-in-part** and **sustained-in-part**.

Request for Judicial Notice

Cross-Defendant requests judicial notice of Shanna M. Farrell's Cross-Complaint in case no. C22-02585, the Cross-Complaint in this action, and the Cross-Complainant's declaration in support of her motion to expunge lis pendens filed on September 30, 2024. Cross-Defendant also requests judicial notice of "[t]he fact that the Rheinheimer Cross-Complaint is duplicative of the Nist Cross Complaint insofar as the former is on the same cause of action between the same parties as the latter (Farrell and Facchini) and because each of these pertain to the Property, the Renovations, the Defective Work (as these terms are defined in both the Rheinheimer Cross-Complaint and the Nist Cross-Complaint) and the attendant damages allegedly caused by Facchini."

The request is **granted-in-part** and **denied-in-part**.

While the Court takes judicial notice of the documents, it does not take notice of the contested facts therein. "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 364.)

Furthermore, the "fact" that the instant Cross-Complaint and the Rheinheimer Cross-Complaint are duplicative is clearly in dispute.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of

contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

The Court is familiar with the background facts of this case. This is a dispute between neighbors over Plaintiffs’ deeded utility easement and the water well to which the easement grants access, both of which are located on Defendants’ property. The underlying Fourth Amended Complaint in this action alleges that in fall of 2021, Defendants commenced construction on their property that spilled onto Plaintiffs’ non-exclusive utility easement. (4AC at ¶ 23.) The underlying Fourth Amended Complaint further alleges that Farrell supervised construction activities that “substantially destroyed the [easement] road” and caused an accumulation of tree logs, weeds, tree branches, several inches of mud, discarded fencing panels and other debris on the easement road and adjacent to Plaintiffs’ well. (4AC at ¶¶ 31, 34-35.)

Farrell’s Cross-Complaint against the Nists and the contractors who performed construction activities on her property; generally, Farrell alleges that Facchini and others “recklessly cut down trees on and around the Property” without her permission (XC at ¶ 18(a), “stored junk, vehicles, and equipment at the Property” without her knowledge or consent (XC at ¶ 18(b), and caused damage to the Property in removing vehicles and equipment from the property. (XC at ¶¶ 21(a), (b).) The allegations of the Cross-Complaint do not generally differentiate between the Nist Cross-Defendants and the contractor Cross-Defendants.

Analysis

Abatement

A special demurrer to a complaint may be brought on the ground that another action is pending between the same parties on the same causes of action. (C.C.P. § 430.10(c); see also *People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 770.) Although the existence of another substantially similar action will rarely appear on the face of a pleading, a demurrer on this ground may be based upon judicially noticed facts. (See *Branson v. Sun-Diamond Growers* (1994) 24 Cal.App.4th 327, 336 n.2; *Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-192.) The other pending action must involve the same parties in the same relationship, that is as plaintiff or defendant (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 789), and must involve the identical cause of action in both suits such that a judgment in the first would be res judicata on the claim in the second (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384). However, abatement is required (or mandatory) only where the multiple actions are pending in courts of the same state. (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574.)

A plea in abatement is disfavored, but it will be successful if “(1) That both suits are predicated upon the same cause of action; (2) that both suits are pending in the same jurisdiction; and (3) that both suits are contested by the same parties.” (*Conservatorship of Pacheco* (1990) 224 Cal.App.3d 171, 176.) Moreover, in order to qualify as “another action pending,” first, the parties must stand in the same relationship (i.e., plaintiff or defendant) in both suits. (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 789.) Second, the identical cause of action must be involved in both suits, so that a judgment in the first action would be res judicata on the claim in the present lawsuit. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) The fact that some of the same issues are involved so that a finding in either case would give rise to collateral estoppel in the other is not

enough if in fact two different causes of action are involved. (*Id.*) Further, courts have concluded that the fact that the same evidence tends to prove both causes is not enough if the causes of action are different. (*Conservatorship of Pacheco*, 224 Cal.App.3d at 176.)

Whether the causes of action are identical involves a comparison of the facts alleged which show the nature of the invasion of plaintiff's primary right. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) A plea in abatement may only be maintained where a judgment in the first action would be a complete bar to the second action. (*Plant Insulation Co., supra*, 224 Cal.App.3d at 787-88.) A plea in abatement is generally disfavored. (*Williams v. State of California* (1976) 62 Cal.App.3d 960, 964.)

Cross-Defendant's argument under Code Civ. Proc. § 430.10(c) arises out of Cross-Complainant's prior Cross-Complaint in Case No. C22-02585 *Rheinheimer v. Farrell, et al* (Rheinheimer Cross-Complaint) filed on March 18, 2024. That Cross-Complaint alleges the following causes of action against Facchini: (4) breach of oral contract, (6) negligent misrepresentation, (7) intentional misrepresentation, (8) fraud, (15) equitable estoppel, (16) promissory estoppel, (17) damage to real property, (19) trespass, (20) negligence – construction defect, (21) violation of Bus. & Prof. Code § 7160, (22) Violation of Bus. & Prof. Code § 7031, (23) contribution, (24) equitable indemnity, (25) unjust enrichment, (26) accounting, and (27) declaratory relief.

Farrell filed the Cross-Complaint in this action on July 17, 2025, alleging fifteen causes of action against Facchini: (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

The Court notes that there is not complete overlap between parties and causes of action, although substantively they all arise out of the same set of underlying facts with respect to Facchini—specifically, his renovation work on Farrell's property. That said, the Cross-Complaint in this action adds additional Cross-Defendants Daniel Jensen and Leroy Galvin, whom the Cross-Complainant collectively refers to along with Facchini as "Unlicensed Contractors."

Cross-Defendant invites the Court to compare the Rheinheimer Cross-Complaint with the Cross-Complaint in this action, but other than to argue that the causes of action in each against Facchini "pertain to the Property and contend that Facchini was hired to perform the Renovations, which he improperly performed, thereby resulting in the Defective Work," he does not provide a "primary right" analysis at the outset that would allow the Court to conclude that the same injury is alleged in the Rheinheimer Cross-Complaint as the instant Cross-Complaint. Though the disputes are clearly related (and the Court has moved to consolidate the two actions), there does appear to be some nuance between the predicate facts in Rheinheimer and here. For example, the allegations in the Rheinheimer action are focused on Facchini's contract with Farrell to perform renovations while in the instant case the allegations include the contention that Facchini and the other contractor Cross-Defendants caused damage to the Farrell's property and the Nists' easement. Facially those would appear to be different (though related) injuries. On reply, Cross-Defendant argues that "Farrell's primary right was that of having work performed to the applicable standard, with Facchini's duty being that of performing such work per the agreement and said standard." (Reply at 7:28-8:2.) The

Court is not persuaded by this analysis and cannot conclude that the two Cross-Complaints arise out of the same primary right.

The Demurrer on the grounds of abatement is **overruled**.

Statute of Limitations

Next, Cross-Defendant demurs to Farrell's second through ninth causes of action pursuant to Code of Civil Procedure section 430.10(f) on the grounds that they are barred by the applicable statutes of limitations. Cross-Defendant's argument is predicated on his request for judicial notice, which the Court has denied in part (as discussed above).

The running of the statute must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint might be time barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Brothers Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, nothing on the face of the Cross-Complaint appear "clearly and affirmatively" to bar the claims based on the statute of limitations.

Furthermore, as Farrell notes in opposition, the Cross-Complaint in this action alleges retaliation subsequent to breach of contract (See XC at ¶¶ 19,20); even if the Court were to take judicial notice of a specific date of breach in December 2022, there remains the possibility of later conduct which would bring Farrell's claims within their respective statutes of limitation.

While the Cross-Complaint may be vulnerable to a motion for summary judgment on the grounds that its causes of action are barred their respective statutes of limitations, the Court cannot conclude at this stage of the proceedings that they are conclusively time-barred. The Demurrer on the grounds of the statute of limitations is **overruled**.

Uncertainty

Next, Cross-Defendant demurs to the Cross-Complaint on the grounds that its lack of temporal context renders it fatally uncertain under Code of Civil Procedure section 430.10(e). (Demurrer at 14:9-16 [citing *Miller v. Brown* (1951) 107 Cal.App.2d 304, 307].)

As a threshold issue, the Court notes that uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7(l)-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Furthermore, Cross-Defendant's reliance on *Miller* is inapt. *Miller* held that when there are ambiguous statements as to the date of an alleged indebtedness, a special demurrer may be sustained on that ground. Unlike the plaintiff in *Miller*, Farrell has not obscured the theory on which she premises her claims, making it difficult to identify the applicable statute of limitations. Indeed, as noted by Facchini on reply, Farrell's second through ninth causes of action each have specific limitations statutes under the Code of Civil Procedure. Cross-Defendant has not provided any authority, and the Court is not aware of any, that requires temporal specificity to the degree

advocated by Cross-Defendant.

The Demurrer on this ground is **overruled**.

Indemnity Claims

Cross-Defendant demurs to Cross-Complainant's indemnity claims (contribution, equitable indemnity, implied indemnity, and comparative indemnity) on the grounds that they are "redundant." (Dem. at § III(E).) Cross-Complainant has not responded to these arguments in opposition. Though the Court has doubts about the merits of Cross-Defendant's arguments, Cross-Complainant's failure to oppose them is a tacit admission of their merit.

The Demurrer to the causes of action for contribution, equitable indemnity, implied indemnity, and comparative indemnity is **sustained**, with leave to amend.

Declaratory Relief

Similarly, Cross-Defendant demurs to Cross-Complainant's claim for declaratory relief on the grounds that it is duplicative of her indemnity claims. Cross-Defendant also demurs to this cause of action on the grounds that declaratory relief is not available to remedy past conduct. Cross-Complainant did not oppose these arguments.

The Demurer to the declaratory relief cause of action is **sustained**, with leave to amend.

13. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS-COMPLAINT
FILED BY: NIST, WILLIAM G
TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants" or "the Nists")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s Cross-Complaint for (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

Cross-Defendants demur to all but the thirteenth cause of action pursuant to CCP § 430.10(e).

For the following reasons, the Demurrer is **sustained-in-part** and **overruled-in-part**.

Analysis

(1) trespass to timber (Civ. Code § 3346)

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to